

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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FERNANDO FERRACANE, MARCO SANCHEZ, SEGUNDO
SANCHEZ, PEDRO PINGUIL, VICTOR PANTOJAS,

Plaintiffs,

**COMPLAINT AND
DEMAND FOR A JURY
TRIAL**

-v-

11-CV-6992

The CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT (“NYPD”) DETECTIVE (“DET.”) ANTONIO
BENERO (Shield No. 0523), OFFICER DONNELL MYERS
(Shield No. 10314), OFFICER BRIAN EGAN (Shield No.
30173); NYPD OFFICER JOHN DOE 1 through NYPD
OFFICER JOHN DOE 12; NYPD SUPERVISORY OFFICER
RICHARD ROES (the name John Doe and Richard Roe being
fictitious, as the true names, ranks, and shield numbers are
presently unknown), in their individual and official capacities,

Defendants.

-----X

I’m sure there’s somebody who, by accident, didn’t know that the
colors they were wearing were the gang colors of the day... If
they’re innocent, my apologies. Wrong place, wrong time. Things
happen...

-New York City Mayor Michael Bloomberg on the mass
arrests at the 2007 Puerto Rican Day Parade

Plaintiffs FERNANDO FERRACANE, MARCO SANCHEZ, SEGUNDO SANCHEZ,
PEDRO PINGUIL, and VICTOR PANTOJAS, by their attorneys DAVID B. RANKIN and
ROBERT M. QUACKENBUSH of the Law Office of Rankin and Taylor, as and for their
complaint, do hereby state as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiffs' rights under the First, Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, as amended, codified as 42 U.S.C. § 1983.
2. Plaintiffs FERNANDO FERRACANE, MARCO SANCHEZ, SEGUNDO SANCHEZ, PEDRO PINGUIL, and VICTOR PANTOJAS' individual and collective rights were violated when officers of the NEW YORK CITY POLICE DEPARTMENT ("NYPD"), primarily members of the so-called Gang Intelligence Unit, unconstitutionally and without any legal basis seized, detained, arrested, used unlawful force against, and conducted unlawful surveillance of, the plaintiffs. In so doing, defendants were motivated primarily by their perception of plaintiffs' status, not criminal conduct, and by a perception that plaintiffs were associated with a street gang. By reason of defendants' actions, including their unreasonable and unlawful conduct, search and protracted detention, the plaintiffs were deprived of their constitutional rights.
3. Plaintiffs seek an award of compensatory and punitive damages and attorneys' fees.
4. Plaintiffs also seek injunctive relief in the form of an Order compelling defendant CITY OF NEW YORK ("CITY") to destroy all so-called intelligence or surveillance information gained from plaintiffs during their unlawful detention, in compliance with New York Criminal Procedure Law § 160.50.

JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343 (3-4).

6. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of plaintiffs' rights under the First, Fourth and Fourteenth Amendments of the United States Constitution.
7. Venue is proper pursuant to 28 U.S.C. §1391(b) in that plaintiffs' claims arose in the Southern District of New York.
8. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

9. Plaintiff FERNANDO FERRACANE is a Latino male and is a resident of Kings County in the State of New York.
10. Plaintiff MARCO SANCHEZ is a Latino male and is a resident of Hudson County in the State of New Jersey.
11. Plaintiff SEGUNDO SANCHEZ is a Latino male and is a resident of Hudson County in the State of New Jersey.
12. Plaintiff PEDRO PINGUIL is a Latino male and is a resident of Essex County in the State of New Jersey.
13. Plaintiff VICTOR PANTOJAS is a Latino male and is a resident of Bronx County in the State of New York.
14. Defendant CITY is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the consumers of the services provided by NYPD.
15. Defendants DETECTIVE ("DET.") ANTONIO BENERO (Shield No. 0523), OFFICER DONNELL MYERS (Shield No. 10314), OFFICER BRIAN EGAN (Shield No. 30173);

NYPD OFFICER JOHN DOE 1 through NYPD OFFICER JOHN DOE 12 (collectively referred to as the “officer-defendants”) are being sued herein in their individual and official capacities.

16. At all times relevant herein, the officer-defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
17. The true names, ranks and shield numbers of defendants NYPD OFFICER DOE 1 through NYPD OFFICER DOE 12 and SUPERVISORY OFFICER ROE are not currently known to the plaintiffs.¹ However, all of said defendants are employees or agents of the NYPD. Accordingly, said defendants are entitled to representation in this action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Obligations Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiffs intend to name said CITY employees as defendants in an amended pleading once the true names and shield numbers of said defendants becomes known to plaintiffs and (b) that the Law Department should immediately begin preparing their defense in this action.
18. Defendants’ acts hereafter complained of were carried out intentionally, recklessly, with malice and gross disregard for plaintiffs’ rights.

¹ By identifying said officers as “John Doe” and “Richard Roe,” plaintiffs are making no representations as to the gender of those officers.

STATEMENT OF FACTS

Background concerning the Puerto Rican Day Parade and the NYPD's policing of it

19. The Puerto Rican Day Parade is an annual celebration of Puerto Rican culture and heritage in New York City. It has become New York's largest parade, attracting approximately three million (3,000,000) people annually.
20. The Puerto Rican Day Parade runs along Fifth Avenue between 44th Street and 86th Street in New York County.
21. At the 2006 Puerto Rican Day Parade, approximately one hundred and fifty (150) onlookers, spectators and participants were arrested by officers of the NYPD's Gang Intelligence Unit.
22. At the 2007 Puerto Rican Day Parade, over two hundred (200) onlookers, spectators and participants were arrested by officers of the NYPD's Gang Intelligence Unit.
23. In response to the public uproar concerning the indiscriminate police dragnet at the 2007 Puerto Rican Day Parade, New York City Mayor Michael Bloomberg admitted that innocent people were likely swept up in the mass arrests, based largely upon the color of clothes they were wearing. Mayor Bloomberg stated, "The cops are supposed to stop 'em and arrest 'em, and that's what they did," said Bloomberg on his weekly WABC-AM radio show, referring to persons perceived to be gang members. "I'M SURE THERE'S SOMEBODY WHO, BY ACCIDENT, DIDN'T KNOW THAT THE COLORS THEY WERE WEARING WERE THE GANG COLORS OF THE DAY... IF THEY'RE INNOCENT, MY APOLOGIES," he said. "WRONG PLACE, WRONG TIME. THINGS HAPPEN, BUT WE HAVE TO KEEP PEACE IN THE CITY AND ENFORCE THE LAW."²

² Michael Saul, *Mayor backs cops on parade busts*, N.Y. Daily News, June 16, 2007, at 5, available on Westlaw at 2007 WLNR 11350695.

24. According to The New York Times, an NYPD spokesperson claimed that approximately 95% of people arrested at the 2007 Puerto Rican Day Parade were gang members.³
25. Several of the onlookers, spectators and participants who were at the “wrong place, wrong time” at the 2007 Puerto Rican Day Parade successfully sued the City of New York for violations of their civil rights.⁴
26. Just as in previous years, at the 2009 Puerto Rican Day Parade, scores of spectators and onlookers were arrested by officers of the NYPD on completely groundless criminal charges, which, upon information and belief, were based on nothing more than the race of the arrestees and color clothes they were wearing at the Parade, with nearly all of the criminal cases ultimately resulting in dismissals. While these arrestees were in custody, officers of the NYPD’s Gang Intelligence Unit took photographs and video of many of the arrestees, including their faces and tattoos. The Gang Intelligence Unit also interrogated the arrestees, without the benefit of Miranda warnings, concerning alleged gang affiliation.
27. Several of the spectators and onlookers who were at the “wrong place, wrong time” at the 2009 Puerto Rican Day Parade successfully sued the City of New York for violations of their civil rights.⁵
28. Upon information and belief, the NYPD, particularly its Gang Intelligence Unit, targets Latinos for arrest and/or prolonged detention at the Puerto Rican Day Parade in order to gather intelligence on alleged local gang activities.

³ See, Anemona Hartocollis & Thomas J. Lueck, *208 Arrested at Puerto Rican Day Parade, an Increase*, June 12, 2007, available at <http://www.nytimes.com/2007/06/12/nyregion/12parade.html>.

⁴ See, Susanna v. New York City Police Department, 08-CV-7832 (DAB) (Southern District of New York).

⁵ See, Acevedo v. City of New York, 10-CV-0514 (HB) (Southern District of New York).

29. Upon information and belief, the NYPD (including but not limited to its Gang Intelligence Unit) continues to maintain and possess photographs, records and other intelligence gained from the arrests at the Puerto Rican Day Parade, even where the underlying criminal cases were dismissed and such records should have been destroyed, by operation of law, pursuant to the state's statutory sealing provision for dismissed criminal cases, N.Y.C.P.L. § 160.50.⁶
30. At the 2010 Puerto Rican Day Parade (herein "Parade"), the event described infra, approximately one hundred seven (107) onlookers, spectators and participants, including the plaintiffs, were arrested by NYPD officers.

Facts specific to the day of the 2010 Puerto Rican Day Parade

31. The facts alleged infra occurred principally at the Parade on June 13, 2010, in the vicinity of 60th Street between Lexington Avenue and Fifth Avenue in the County and State of New York.
32. On the morning and early afternoon of June 13, 2010, the plaintiffs traveled from various places in New York and New Jersey in order to attend the Parade.

The arrest of plaintiff FERNANDO FERRACANE

33. Plaintiff FERRACANE arrived near the Parade site at approximately 12:25 p.m. He was wearing, inter alia, a green, red and black cap and rosary beads around his neck.
34. At approximately 1:30 p.m., plaintiff FERRACANE was walking with a friend on the sidewalk in the vicinity of Lexington Avenue and 60th Street.

⁶ Upon dismissal of criminal charges in a person's favor in the State of New York, N.Y.C.P.L. § 160.50(b) requires "every photograph of such person and photographic plate or proof, and all palmprints and fingerprints taken or made of such person pursuant to the provisions of this article in regard to the action or proceeding terminated... and all duplicates and copies thereof... shall forthwith be, at the discretion of the recipient agency, either destroyed or returned to such person, or to the attorney who represented such person at the time of the termination of the action or proceeding... by the division of criminal justice services and by any police department or law enforcement agency having any such photograph, photographic plate or proof, palmprint or fingerprints in its possession or under its control."

35. Defendant OFFICER EGAN and approximately 15 other plainclothes officers approached plaintiff FERRACANE and others. The officers began yelling towards plaintiff FERRACANE, in sum and substance, “GET UP AGAINST THE WALL!”
36. Plaintiff FERRACANE complied and put his hands against a wall.
37. Despite his compliance with the officers’ orders, defendant OFFICER EGAN or another of the officers repeatedly pushed plaintiff FERRACANE’s face against the wall.
38. While this was happening, another officer approached and draped a red bandana over plaintiff FERRACANE’s shoulder.
39. Plaintiff FERRACANE asked the officers why they draped the red bandana over his shoulder, but they refused to respond.
40. While plaintiff FERRACANE was still facing the wall, a tall Caucasian officer (who was wearing a New York Giants cap) rear-cuffed Mr. FERRACANE and started to frisk him.
41. This officer also began asking and accusing plaintiff FERRACANE about gang membership, asking him whether he belonged to a gang and what his rank in the gang was.
42. Plaintiff FERRACANE truthfully denied being a gang member, stating, in sum and substance, “I’m nothing” and “I was just walking with my girlfriend.”
43. While this was happening, approximately three officers began taking photographs of plaintiff FERRACANE. These photographs were both close-up shots of plaintiff FERRACANE’s face as well as wider shots of the entire arrest scene.
44. Plaintiff FERRACANE asked the officers why they were taking pictures of him, but the officers did not respond to his questions.
45. After a few minutes, an NYPD van and several other uniformed officers arrived in the area.

46. Plaintiff FERRACANE asked one of the uniformed officers what was happening. In response, the officer told Mr. Ferracane, in sum and substance, “WE’RE STOPPING EVERYBODY.”

47. Soon thereafter, plaintiff FERRACANE and approximately eight to ten other arrestees were loaded into the NYPD van.

48. After about ten minutes, the van left the parade area and headed towards downtown Manhattan.

The arrests of plaintiffs MARCO SANCHEZ, SEGUNDO SANCHEZ and PEDRO PINGUIL

49. On the morning of the Parade, plaintiffs MARCO SANCHEZ, SEGUNDO SANCHEZ and PEDRO PINGUIL met up with a friend of theirs and traveled together into New York City for the Parade.

50. At approximately 12:30 p.m., plaintiffs M. SANCHEZ, S. SANCHEZ, and PINGUIL arrived in the vicinity of 60th Street and Lexington Avenue in the County and State of New York. While there, plaintiff M. SANCHEZ and others went into a sandwich shop to get lunch. Plaintiffs S. SANCHEZ and PINGUIL waited outside while the others went into the restaurant.

51. Shortly thereafter, approximately three plainclothes officers went into the restaurant and began arresting some of the patrons. Some of those arrestees were wearing black and gold clothing as well as black and gold bead necklaces.

52. Upon information and belief, the NYPD associated black and gold clothing with membership in the Latin Kings organization.

53. Believing the officers were only arresting persons wearing black and gold, plaintiff PINGUIL entered the restaurant to use the restroom.

54. While plaintiff PINGUIL was in the restroom, the officers (including but not limited to defendant OFFICER MYERS) approached plaintiff M. SANCHEZ and S. SANCHEZ and promptly arrested them.
55. When plaintiff PINGUIL walked out of the bathroom, one of the officers grabbed him and placed him under arrest.
56. The officers then placed plastic flexcuffs on plaintiffs M. SANCHEZ, S. SANCHEZ, and PINGUIL in such a manner that the restraints dug into plaintiffs' skin.
57. While plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL were standing in the restaurant with their hands restrained behind their backs, one of the officers pointed to a nearby empty table that had a small pile of black and gold hats and beads sitting on it. The officer asked plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL whether the hats and beads belonged to them.
58. Plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL truthfully replied that the hats and beads did not belong to them.
59. Nevertheless, the officer grabbed the black and gold beads and began to place them around the necks of plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL.
60. After the officer had finished placing the beads on plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL, one of the officers began taking photographs and Polaroids of them. In at least some of the photos, the arresting officer or officers were photographed standing next to plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL.
61. For reasons unknown to any of the plaintiffs, the officers then began referring to plaintiff S. SANCHEZ as "KING MANO." Plaintiff S. SANCHEZ has never been a Latin King and had never before been referred to as "KING MANO."

62. Plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL and several other arrestees were then loaded into an NYPD van.

63. Soon thereafter, the NYPD van left the area and headed towards downtown Manhattan.

The arrest of plaintiff VICTOR PANTOJAS

64. Plaintiff VICTOR PANTOJAS and a friend of his arrived in the vicinity of the Parade early in the afternoon of June 13, 2010.

65. At approximately 2:00 p.m. and in the vicinity of 60th Street and Fifth Avenue, plaintiff PANTOJAS his friend were walking through the crowd in order to meet up with plaintiff PANTOJAS's mother and some of her friends.

66. While they were walking, a New York City Parks Department officers stopped plaintiff PANTOJAS' friend and indicated they should turn around and walk the other way.

67. While plaintiff PANTOJAS and his friend were attempting to explain to the Parks Department officer that they were trying to find Mr. PANTOJAS' mother, approximately six to ten plainclothes NYPD officers approached Mr. PANTOJAS and his friend and arrested him.

68. Plaintiff PANTOJAS began verbally protesting that there was absolutely no reason his friend should have been arrested.

69. In retaliation for plaintiff PANTOJAS' protests, the officer-defendants, including but not limited to defendant DET. BENERO, immediately grabbed Mr. PANTOJAS from behind and dumped him on the pavement.

70. One or more of the defendant-officers then tightly rear-cuffed plaintiff PANTOJAS, causing injuries, discoloration and mild scarring to Mr. PANTOJAS' wrists.

71. At least one of the officers began taking photographs and/or Polaroids of plaintiff PANTOJAS and other arrestees.

72. The officers then began asking some of the arrestees whether they were members of the Latin Kings organization.

73. Soon thereafter, plaintiff PANTOJAS was loaded into an NYPD van which then headed towards downtown Manhattan.

Interrogations of plaintiffs at One Police Plaza

74. In a highly unusual move, the officer-defendants transported the plaintiff directly to NYPD Headquarters at One Police Plaza, instead of first processing the arrestees through a local precinct.

75. In another highly unusual move, upon arrival at One Police Plaza, the NYPD had set up several tables *outside* of headquarters in order to process the arrestees.

76. At these tables outside One Police Plaza, a third set of photographs of each plaintiff's face were taken by the officers. Specifically, officers took Polaroid photographs of each plaintiff's face as well as a Polaroid of each plaintiff standing with his arresting officer.

77. Before being taken inside One Police Plaza, each plaintiff was searched and their property seized from their possession.

78. The plaintiffs were then placed into a large holding cell.

79. One by one, the plaintiffs were taken out of the cell and taken into a separate room for interrogation. Beyond pedigree information, the interrogators asked questions generally about gang membership and specifically about membership in the Latin Kings organization.

80. All of the plaintiffs truthfully denied membership in the Latin Kings organization or any other purported street gang.

81. In the case of plaintiff M. SANCHEZ, his interrogators refused to believe he was not a Latin King; in support of their argument, they pointed to the yellow stripe on plaintiff M. SANCHEZ's sneakers as so-called proof of membership with the Latin Kings.
82. After their individual interrogations, each plaintiff was taken back to the large holding cell.
83. All of the plaintiffs were eventually released from custody between approximately 7:30 p.m. and 8:30 p.m.
84. Accordingly, plaintiff FERRACANE was in defendants' custody for approximately seven hours, plaintiffs M. SANCHEZ, S. SANCHEZ and PINGUIL were in defendants' custody for approximately eight hours, and plaintiff PANTOJAS was in defendants' custody for approximately six hours.

The failed prosecutions of plaintiffs

85. Upon their release from custody, all of the plaintiffs were issued desk appearance tickets ("DAT") charging them with disorderly conduct, N.Y.P.L. § 240.20. The DATs required plaintiffs to report to New York County Criminal Court on July 17, 2010 in order to face charges of disorderly conduct.
86. On July 17, 2010, all of the plaintiffs appeared in criminal court to answer charges related to their arrests at the Parade.
87. Specifically, based upon the knowingly false and perjured statements of defendant OFFICER EGAN, plaintiff FERRACANE was charged with under N.Y.P.L. § 240.20(5), disorderly conduct by blocking pedestrian traffic.
88. At plaintiff FERRACANE's second appearance in criminal court, the Court granted his motion to dismiss the charges against as being facially insufficient to make out the charge of disorderly conduct.

89. Based upon the knowingly false and perjured statements of defendant OFFICER MYERS, plaintiffs M. SANCHEZ, S. SANCHEZ, and PINGUIL were all charged under N.Y.P.L. § 240.20(5),(6), disorderly conduct by blocking pedestrian traffic and disorderly conduct by failure to obey an order to disperse.
90. At their second appearance in criminal court, the Court granted plaintiffs M. SANCHEZ, S. SANCHEZ, and PINGUIL's motions to dismiss as being facially insufficient to make out the charges of disorderly conduct.
91. Based upon the knowingly false and perjured statements of defendant DET. BENERO, plaintiff PANTAJOS was charged under N.Y.P.L. § 240.20(6), disorderly conduct by refusing to obey an order to disperse.
92. At the first criminal appearance in criminal court, the prosecutor offered, and plaintiff PANTOJAS accepted, an adjournment in contemplation of dismissal, a disposition which resulted in the dismissal of all charges against him.
93. Upon information and belief, these arrests were not made with the intention of prosecuting plaintiffs for violating the law. Instead, plaintiffs were arrested, inter alia, so the NYPD's Gang Intelligence Unit could conduct surveillance on and interrogations of plaintiffs in an attempt to gain intelligence about the inner workings of the organization as well as New York City-area gangs.
94. Upon information and belief, the NYPD has not complied with N.Y.C.P.L. § 160.50, as it relates to plaintiffs' arrests and prosecutions alleged herein.
95. In arresting plaintiffs prior to the Parade, and by refusing to release them until the Parade had ended, the officer-defendants intentionally deprived plaintiffs of their rights to assemble and demonstrate pride in their racial heritage and community involvement, with the intention of

punishing them due to their racial identification and association with one another and the organization.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

96. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

97. Defendants, under color of state law, subjected the plaintiffs to the foregoing acts and omissions without due process of law and in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution, through 42 U.S.C. § 1983, thereby depriving plaintiffs of their rights, privileges and immunities, including, without limitation, deprivation of the following constitutional rights:

- a. Freedom from unreasonable seizures of their person, including the excessive use of force;
- b. Freedom from arrest without probable cause;
- c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which plaintiffs were aware and did not consent;
- d. Freedom from the lodging of false charges against them by police officers;
- e. Freedom from having police officers fabricate evidence against them;
- f. Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiffs' favor;
- g. Freedom to engage in protected speech, expression and association;
- h. Freedom from retaliatory prosecution;
- i. Freedom from abuse of process;
- j. Freedom from deprivation of liberty without due process of law; and
- k. The enjoyment of equal protection, privileges and immunities under the laws.

98. Defendants' deprivation of plaintiffs' constitutional rights resulted in the injuries and damages set forth above.

**SECOND CLAIM
SUPERVISORY LIABILITY FOR DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983**

99. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

100. By failing to remedy the wrongs committed by his or her subordinates, in failing to properly train, screen, supervise, or discipline his or her subordinates, and by personally participating in and coordinating the mass arrests at the 2010 Puerto Rican Day Parade including the constitutional torts described above, defendant SUPERVISORY OFFICER ROE caused damage and injury in violation of plaintiffs' rights guaranteed under the United States Constitution, including its First, Fourth, and Fourteenth Amendments.

101. As a result of the foregoing, plaintiffs were deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and were otherwise damaged and injured.

**THIRD CLAIM
FAILURE TO INTERVENE TO PREVENT VIOLATIONS OF FIRST AND
FOURTH AMENDMENTS THROUGH 42 U.S.C. § 1983**

102. Plaintiffs reallege and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

103. Members of the NYPD have an affirmative duty to assess the constitutionality of interactions between their fellow members of service and civilians and to intervene where they observe another member of the Police Department or other law enforcement agency employing unjustified and excessive force against a civilian or falsely arresting a civilian.

104. Defendants OFFICER DOE 1 through OFFICER DOE 12 were present for the above-described incident and witnessed other officer-defendants unlawfully arrest the plaintiffs.
105. Defendants' uses of force against plaintiffs were obviously excessive and unjustified under the circumstances yet defendants OFFICER DOE 1 through OFFICER DOE 12 failed to take any action or make any effort to intervene, halt or protect the plaintiffs from being subjected to excessive force by other officer-defendants.
106. The arrests of plaintiffs and the initiation of criminal charges against them were clearly without probable cause or other legal justification, and were based on facts alleged by defendants OFFICER MYERS, OFFICER EGAN and DET. BENERO, which the other officer-defendants knew to be false, yet the other officer-defendants failed to take any action or make any effort to intervene, halt or protect plaintiffs from being unlawfully and wrongfully arrested and prosecuted.
107. Defendants OFFICER DOE 1 through OFFICER DOE 12's violations of plaintiffs' constitutional rights by failing to intervene in other defendants' clearly unconstitutional use of force and plaintiffs' unconstitutional arrests and prosecutions resulted in the injuries and damages set forth above.

FOURTH CLAIM
MONELL CLAIM AGAINST DEFENDANT CITY – 42 U.S.C. § 1983

108. Plaintiffs reallege and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.
109. All of the acts and omissions by the named and unnamed individual police officer defendants described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged

in with the full knowledge, consent, and cooperation and under the supervisory authority of the defendant CITY and its agency, the NYPD.

110. Defendant CITY and the NYPD, by their policy-making agents, servants and employees, authorized, sanctioned and/or ratified the individual police defendants' wrongful acts; and/or failed to prevent or stop those acts; and/or allowed or encouraged those acts to continue.

111. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the CITY and the NYPD, all under the supervision of ranking officers of the NYPD.

112. The aforementioned customs, practices, procedures and rules of the CITY and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Arresting persons at the Puerto Rican Day Parade based upon their race and/or the color clothes they were wearing in order to attempt to gain intelligence regarding alleged gang activity;
- b. Falsely swearing out criminal complaints, and/or lying and committing perjury during sworn testimony
 - i. in order to protect other officers; and/or
 - ii. in order to meet said productivity goals; and
- c. Failing to intervene to prevent the above-mentioned practices when they reasonably could have been prevented by a supervisor or other agent or employee of the NYPD.

113. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following civil rights actions filed against the CITY:

- a. Acevedo v. City of New York, 10-CV-0514 (HB) (S.D.N.Y.) (officers of the NYPD Gang Intelligence Unit arrest numerous people attending the 2009 Puerto Rican Day Parade, based on nothing more than their race and perceived gang affiliation, in an effort to gain intelligence about New York-area gang activity);

- b. Susanna v. New York City Police Department, 08-CV-3832 (DAB) (S.D.N.Y.) (same, except arrests occurred at the 2007 Puerto Rican Day Parade);
- c. Schoolcraft v. City of New York, 10-CV-6005 (RWS) (S.D.N.Y.) (police officer who exposed a precinct's policies and practices of, inter alia, falsifying evidence and suborning perjury alleges he was arrested and committed to a psychiatric facility in retaliation for exposing said policies and practices to the press);
- d. Long v. City of New York, 09-CV-9216 (AKH) (S.D.N.Y.); People v. Pogan, 06416-2008 (Sup. Ct., N.Y. Co.) (officer who purposefully swore out a false complaint and used excessive force is convicted of falsifying police records);
- e. Taylor-Mickens v. City of New York, 09-CV-7923 (RWS) (S.D.N.Y.) (police officers at the 24th Precinct issue four summonses to a woman in retaliation for her lodging a complaint with the Civilian Complaint Review Board at the precinct);
- f. Lin v. City of New York, 09-CV-1936 (PGG) (S.D.N.Y.) (officers arrest person lawfully photographing an arrest of a bicyclist in Times Square and swear out a criminal complaint whose facts are contradicted by video evidence);⁷
- g. Colon v. City of New York, 09-CV-0008 (E.D.N.Y.) In an Order dated November 25, 2009, which denied the CITY's motion to dismiss on Iqbal/Twombly grounds, wherein the police officers at issue were fired and prosecuted for falsifying evidence in a purported buy-and-bust operation, the Honorable District Court Judge Weinstein wrote:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officer of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration – through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department – there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

- h. Bryant v. City of New York, 22011/2007 (Sup. Ct., Kings Co.) (jury declares that NYPD officers acted pursuant to a City policy regarding the number of arrests

⁷ For a description of this case and settlement, see, Anahad O'Connor, *City Pays \$98,000 to Critical Mass Cyclists*, N.Y. Times, March 30, 2010, available at <http://cityroom.blogs.nytimes.com/2010/03/30/city-pays-98000-to-critical-mass-cyclists/>.

officers were expected to make that violated plaintiff's constitutional rights and contributed to her arrest);⁸

- i. Callaghan v. City of New York, 07-CV-9611 (PKC) (S.D.N.Y.) (officers accused of falsifying evidence and retaliatory arrests of bicyclists engaged in expressive conduct, to wit, riding in Critical Mass bicycle rides after the 2004 Republican National Convention);⁹
- j. Carmody v. City of New York, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207 (S.D.N.Y.) (police officer alleges that he was terminated for cooperating with another officer's claims of a hostile work environment);
- k. McMillan v. City of New York, 04-CV-3990 (FB) (RML) (E.D.N.Y.) (officers fabricated evidence and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- l. Avent v. City of New York, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.) (same);
- m. Smith v. City of New York, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.) (same);
- n. Powers v. City of New York, 04-CV-2246 (NGG), 2007 U.S. Dist. LEXIS 27704 (E.D.N.Y.) (police officer alleges unlawful retaliation by other police officers after testifying about corruption within the NYPD);
- o. Nonnemann v. City of New York, 02-CV-10131 (JSR) (AJP), 2004 U.S. LEXIS 8966 (S.D.N.Y.) (former NYPD lieutenant alleging retaliatory demotion and early retirement after reporting a fellow officer to IAB and CCRB for the officer's suspicionless, racially-motivated stop-and-frisk of a group of Hispanic youth);
- p. Richardson v. City of New York, 02-CV-3651 (JG) (CLP) (E.D.N.Y.) (officers fabricated evidence, including knowingly false sworn complaints, and used excessive force against an African-American man in Kings County and initiated drug charges against him, despite an absence of any quantum of suspicion);
- q. Barry v. New York City Police Department, 01-CV-10627 *2 (CBM), 2004 U.S. LEXIS 5951 (S.D.N.Y.) (triable issue of fact where NYPD sergeant alleged retaliatory demotion and disciplinary charges in response to sergeant's allegations of corruption within her unit and alleged that the NYPD had an "unwritten but pervasive

⁸ For a description of this case and ultimate settlement, see, Oren Yaniv, *Court rules that cops do use quotas, woman injured in 2006 arrest settles for \$75,000*, N.Y. Daily News, Feb. 19, 2011, available at http://www.nydailynews.com/news/ny_crime/2011/02/19/2011-02-19_court_rules_that_cops_do_use_quotas_woman_injured_in_2006_arrest_settles_for_750.html.

⁹ For a description of this case and the nearly \$1 million settlement, see, Cate Doty, *Bike Riders in New York Win Settlement*, N.Y. Times, October 18, 2010, available at http://www.nytimes.com/2010/10/19/nyregion/19critical.html?_r=1.

custom of punishing officers who speak out about police misconduct and encouraging, if not facilitating, silence among officers”);

- r. Taylor v. City of New York, 01-CV-5750 (ILG) (MDG) (E.D.N.Y.) (same as Richardson, except without the excessive force; judge at the criminal trial acquitting Mr. Taylor noted, on the record, that he had “significant doubt” about the truthfulness of the officers who testified);
- s. Walton v. Safir, 99-CV-4430 (AKH), 122 F.Supp.2d 466 (S.D.N.Y. 2000) (factual findings after trial that a 12-year veteran of NYPD was terminated in retaliation for criticizing the racially-motivated policies of the NYPD’s Street Crime Unit and for alleging that such policies led to the NYPD shooting death of Amadou Diallo);
- t. White-Ruiz v. City of New York, 93-CV-7233 (DLC) (MHD), 983 F.Supp. 365, 380 (S.D.N.Y. 1997) (holding that the NYPD had an “unwritten policy or practice of encouraging or at least tolerating a pattern of harassment directed at officers who exposed instances of police corruption”);
- u. Ariza v. City of New York, 93-CV-5287 (CPS), 1996 U.S. Dist. LEXIS 20250 at*14 (E.D.N.Y.) (police officer alleges retaliatory duty assignments and harassment in response to his allegations about a racially-discriminatory workplace; on motion for summary judgment, the Court held that the police officer had established proof of both a widespread usage of a policy to retaliate against police officers who expose police misconduct and a failure to train in the police department);
- v. Sorlucco v. New York City Police Department, 89-CV-7225 (CCH), 88 F.2d 4 (2d Cir. 1989) (former officer entitled to trial on issue of whether she was re-assigned and then terminated after reporting that a fellow officer had raped her); and
- w. Kaufman v. City of New York, 87-CV-4492 (RO), 1992 U.S. Dist. LEXIS 14049 (S.D.N.Y.) (bystander arrested for observing an unlawful arrest in public, requesting the officer’s badge number, and telling the officer that he planned to file a report about the arrest).

114. The existence of the aforesaid unconstitutional customs and practices, **specifically with regard to the practice or custom of officers lying under oath, falsely swearing out criminal complaints, or otherwise falsifying or fabricating evidence**, are further evidenced, inter alia, by the following:

- a. The Mollen Commission concluded that police perjury and falsification of official records is probably the most common form of police corruption facing the criminal justice system. It concluded:

Regardless of the motives behind police falsifications, what is particularly troublesome about this practice is that it is widely tolerated by corrupt and honest officers alike, as well as their supervisors. Corrupt and honest officers told us that their supervisors knew or should have known about falsified versions of searches and arrests and never questioned them.¹⁰

[...]

What breeds this tolerance is a deep-rooted perception among many officers of all ranks within the Department that nothing is really wrong with compromising facts to fight crime in the real world. Simply put, despite the devastating consequences of police falsifications, there is a persistent belief among many officers that it is necessary and justifies, even if unlawful. As one dedicated officer put it, police officers often view falsification as, to use his words, “doing God’s work” – doing whatever it takes to get a suspected criminal off the streets. This attitude is so entrenched, especially in high-crime precincts, that when investigators confronted one recently arrested officer with evidence of perjury, he asked in disbelief, “What’s wrong with that? They’re guilty.”¹¹

- b. In response to the Honorable Judge Weinstein’s ruling of November 25, 2009 in Colon v. City of New York, 09-CV-00008 (E.D.N.Y.), in which he noted a “widespread... custom or policy by the city approving illegal conduct” such as lying under oath and false swearing, Commissioner KELLY acknowledged, “When it happens, it’s not for personal gain. It’s more for convenience.”¹²
- c. In late 2009, a former NYPD officer in the Bronx, Pedro Corniel, was charged with perjury for claiming to have caught a burglar “red-handed,” when, in fact, two other officers had made the arrest and handed the arrest off to Mr. Corniel. The suspect was released.¹³ Moreover,

Prosecutors and NYPD Internal Affairs probers have identified as many as two dozen cases in the past year in which cops allegedly made false statements involving routine arrests when the truth would have served them just as well.

¹⁰ Mollen Commission Report, p. 36.

¹¹ Mollen Commission Report, pp. 40-41.

¹² Oren Yaniv and John Marzulli, *Kelly Shrugs Off Judge Who Slammed Cops*, New York Daily News, December 2, 2009, available at http://www.nydailynews.com/news/ny_crime/2009/12/02/2009-12-02_kelly_shrugs_off_judge_who_rips_lying_cops.html.

¹³ Murray Weiss, *NYPD in a Liar Storm*, New York Post, October 26, 2009, available at http://www.nypost.com/p/news/local/nypd_in_liar_storm_qazMBEm3UNJVoqv4Ndeqcl.

That's a significant increase over previous years, sources said. "In the past, we'd find this happening once or twice a year, and now there are a bunch of them," said one law-enforcement official.

What has the authorities particularly troubled is that officers historically have lied to cover up more serious corruption, such as the cadre of Brooklyn narcotics cops caught last year stealing drugs from dealers and masking their thievery by filing false reports about what they had seized.

But internal probes are now finding that officers appear willing to take insidious shortcuts and lie on arrest reports when they are processing even routine collars, such as grand larceny, burglaries and robberies, sources told The Post.

Their reasons could range from trying to cut down on paperwork to being lazy when filling out arrest and incident reports.¹⁴

- d. In 2007, former NYPD Officer Dennis Kim admitted to accepting money and sexual favors from the proprietor of a brothel in Queens County in exchange for protecting that brothel. Mr. Kim was convicted of those offenses. The 109th Precinct of the NYPD, which used to be Mr. Kim's command, is also under investigation by the United States Attorney's Office for "plant[ing] drugs on suspects and steal[ing] cash during gambling raids." The 109th Precinct is believed to be involved in a practice known as "flaking" wherein police officers plant drugs on suspects in order to bring legitimacy to an arrest. According to Assistant United States Attorney Monica Ryan, members of the 109th Precinct "maintained a small stash of drugs in an Altoids tin for this purpose."¹⁵
- e. In December of 2009, two (2) officers from the 81st Precinct in Brooklyn arrested and falsely swore out charges against an undercover officer from the Internal Affairs Bureau. As explained in an article in the New York Post:

The officers were snared in a sting by Internal Affairs in December when they were told to keep an eye out for people selling untaxed cigarettes in their precinct.

Some time later, they saw a man hanging out on a corner in the neighborhood and found that he was carrying packs of knock-off smokes.

¹⁴ *Id.*

¹⁵ John Marzulli, *Claims of Corruption at Queens Precinct Put Crooked Cop's Sentencing on Hold*, New York Daily News, June 20, 2008, available at http://www.nydailynews.com/news/ny_crime/2008/06/20/2008-06-20_claims_of_corruption_at_queens_precinct.html.

[Sgt. Raymond] Stukes, 45, and [Officer Hector] Tirado, 30, cuffed him, but then claimed that they had seen him selling the bogus butts to two people, according to sources.

Little did the hapless cops know that the man in their custody was an undercover corruption investigator and that the whole incident was caught on video.

To complete the ruse, the undercover cop was processed at the station house so as to not tip off Stukes and Tirado about the sting...

[P]olice sources said [this action] stem[s] from precinct commanders caving to the pressure of top brass to make themselves look better.

“There’s pressure on the cops from the bosses and they’re getting pressured from headquarters,” a police source told The Post.¹⁶

The officers were indicted for felony perjury, filing a false report and filing a false instrument.¹⁷

- f. In early 2010, the CITY recently settled a civil rights lawsuit wherein one Officer Sean Spencer¹⁸ falsely arrested and accused a 41-year old grandmother of prostitution, promising to pay the woman \$35,000. In court documents, Caroline Chen, the attorney representing the CITY in the case, admitted: “Officer Spencer falsely reported to the assistant district attorney that he saw [the plaintiff] beckon to three male passersby and that he was aware that plaintiff was previously arrested for [prostitution] when the plaintiff had never been arrested for this offense.” According to the attorney for the Patrolmen’s Benevolent Association, disciplinary charges against the officer are pending.¹⁹
- g. Separate grand jury investigations into drug-related police corruption in the Bronx and Manhattan revealed that more than a dozen officers had been breaking into drug dealers’ apartments, stealing and then selling their drugs and perjuring themselves by

¹⁶ Larry Celona and Tim Perone, *Cops Sting Cops*, N.Y. Post, July 30, 2010, available at http://www.nypost.com/p/news/local/brooklyn/cops_sting_cops_lyItuTeLdhKWtruJZYsdL.

¹⁷ John Marzulli, *Brooklyn cops charged with barding into sting operation, arresting a fellow officer on bogus charges*, N.Y. Daily News, July 30, 2010, available at http://www.nydailynews.com/ny_local/2010/07/30/2010-07-30_brooklyn_cops_charged_with_barging_into_sting_operation_arresting_a_fellow_offic.html.

¹⁸ In sum, the CITY has paid out \$80,000 to settle four (4) federal lawsuits against Officer Sean Spencer. John Marzulli, *City shells out \$35G to grandmother, Monica Gonzalez, busted as hooker*, New York Daily News, January 7, 2010, available at http://www.nydailynews.com/ny_local/2010/01/08/2010-01-08_city_shells_out_35g_to_granny_busted_as_hooker.html.

¹⁹ *Id.*

filing false arrest reports. District attorneys and their assistants interviewed during a four-month investigation by New York Newsday said they believe those two grand jury investigations - in the 46th Precinct in the University Heights section of the Bronx and the 34th Precinct - are not isolated instances. They say the investigations reflect a larger, broader problem within the NYPD that its top officials seem unable or unwilling to acknowledge.²⁰

115. The existence of the above-described unlawful de facto policies and/or well-settled and widespread customs and practices is known to, encouraged and/or condoned by supervisory and policy-making officer and officials of the NYPD and the CITY, including, without limitation, Commissioner KELLY.
116. The actions of the individual police defendants resulted from and were taken pursuant to the above-mentioned de facto policies and/or well-settled and widespread customs and practices of the CITY, which are implemented by members of the NYPD, of engaging in systematic and ubiquitous perjury, both oral and written, to cover-up federal law violations committed against civilians by either themselves or their fellow officers, supervisors and/or subordinates. They do so with the knowledge and approval of their supervisors, commanders and Commissioner Raymond KELLY (“KELLY”) who all: (i) tacitly accept and encourage a code of silence wherein police officers refuse to report other officers’ misconduct or tell false and/or incomplete stories, inter alia, in sworn testimony, official reports, in statements to the CCRB and the Internal Affairs Bureau (“IAB”), and in public statements designed to cover for and/or falsely exonerate accused police officers; and (ii) encourage and, in the absence of video evidence blatantly exposing the officers’ perjury, fail to discipline officers for “testilying” and/or fabricating false evidence to initiate and continue the malicious prosecution of civilians in order to cover-up civil rights violations perpetrated by themselves or fellow officers, supervisors and/or subordinates against those civilians.

²⁰ David Kocieniewski and Leonard Levitt, *When the Finest Go Bad: DAs, others say department overlooks corruption*, New York Newsday, November 18, 1991, at 6.

117. All of the foregoing acts by defendants deprived the plaintiffs of federally protected rights, including, but limited to:

- a. Freedom from unreasonable seizures of their person, including the excessive use of force;
- b. Freedom from arrest without probable cause;
- c. Freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification, and of which plaintiffs were aware and did not consent;
- d. Freedom from the lodging of false charges against them by police officers;
- e. Freedom from having police officers fabricate evidence against them;
- f. Freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiffs' favor;
- g. Freedom to engage in protected speech, expression and association;
- h. Freedom from retaliatory prosecution;
- i. Freedom from abuse of process;
- j. Freedom from deprivation of liberty without due process of law; and
- k. The enjoyment of equal protection, privileges and immunities under the laws.

118. Defendant CITY knew or should have known that the acts alleged herein would deprive plaintiffs of their rights, in violation of the First, Fourth, and Fourteenth Amendments to the United States Constitution.

119. Defendant CITY is directly liable and responsible for the acts of the individual police defendants because it repeatedly and knowingly failed to properly supervise, train, instruct, and discipline them and because it repeatedly and knowingly failed to enforce the rules and regulation of the CITY and NYPD, and to require compliance with the Constitution and laws of the United States.

120. Despite knowledge of such unlawful de facto policies, practices and/or customs, these supervisory and policy-making officers and officials of the NYPD and the CITY, including Commissioner KELLY, have not taken steps to terminate these policies, practices and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers with regard to the constitutional and statutory limits on the exercise of their authority, and instead sanction and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effect of said policies, practices and/or customs upon the constitutional rights of persons in the City of New York.
121. The aforementioned CITY policies, practices and/or customs of failing to supervise, train, instruct and discipline police officers and encouraging their misconduct are evidenced by the police misconduct detailed herein. Specifically, pursuant to the aforementioned CITY policies, practices and/or customs, the individual defendants felt empowered to arrest plaintiffs without probable cause and then fabricate and swear to a false story to cover up their blatant violations of plaintiffs' constitutional rights. Pursuant to the aforementioned CITY policies, practices and/or customs, defendants failed to intervene in or report other defendants' violation of plaintiffs' rights or subsequent perjury.
122. Plaintiffs' injuries were a direct and proximate result of the defendant CITY and the NYPD's wrongful de facto policies and/or well-settled and widespread customs and practices and of the knowing and repeated failure of the defendant CITY and the NYPD to properly supervise, train and discipline their police officers.
123. The actions of the individual police defendants resulted from and were taken pursuant to the following de facto policies and/or well-settled and widespread customs and practices of

the CITY, which implemented by agents or employees of the NYPD, of employing wholly unprovoked and excessive force.

124. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers and were directly responsible for the violation of the plaintiffs' constitutional rights.

WHEREFORE, the plaintiffs demand judgment against the defendants individually and jointly and pray for relief as follows:

- a. That they be compensated for violation of their constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That every photograph and/or photographic plate or proof of every plaintiff, and all fingerprints and/or palmprints taken or made of every plaintiff, and all documents generated out the arrests or interrogations of every plaintiff, and all duplicates and copies thereof, electronic or otherwise, which were produced as a result of this incident, shall forthwith be:
 - i. Disclosed and provided to plaintiffs' counsel, and
 - ii. Destroyed by any law enforcement agency in possession or control of such records, regardless of whether the nature of said law enforcement agency is local, state, federal or a fusion²¹ of such agencies;
- c. That they be awarded punitive damages against the individual defendants; and
- d. That they be compensated for attorneys' fees and the costs and disbursements of this action; and
- e. For such other further and different relief as to the Court may seem just and proper.

JURY DEMAND

Plaintiffs demand a trial by jury in this action on each and every one of their damage claims.

Dated: New York, New York
October 5, 2011

²¹ E.g., a Joint-Terrorism Task Force.

Respectfully submitted,

/s/

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